

Council Meeting

January 8, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes  
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, March 8, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:00 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne  
Ward III Councilor Jonathan Stone  
Assistant Mayor Debora Matteau  
At-Large Councilor Nicholas Koloski  
At-Large Councilor William Limoges  
At-Large Councilor Spencer Batchelder  
At-Large Councilor Matthew Mooshian  
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

### **COUNCILOR INTERVIEWS**

Mayor Girard began the interview process for the open Ward 2 Council seat, there are two candidates, they will be interviewed in alphabetical order while the other candidate waits in another room.

The first Candidate was Scott Pope, Mayor Girard asked a series of questions. After Mr. Pope completed answering questions, Kevin Tyson the second candidate was also interviewed and asked the same series of questions.

Mayor Girard called for a roll call where each Sitting councilor will say either the name of Scott Pope or Kevin Tyson.

#### **Roll call:**

**O’Hearne – Tyson**

**Batchelder - Tyson**

**Stone - Tyson**

**Matteau - Pope**

**Koloski - Pope**

**Limoges - Tyson**

**Mooshian - Pope**

**Girard - Pope**

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**Motion tied 4-4**

**Roll call:**

**O’Hearne – Tyson**

**Batchelder - Pope**

**Stone - Tyson**

**Matteau - Pope**

**Koloski - Pope**

**Limoges - Tyson**

**Mooshian - Pope**

**Girard - Pope**

**Motion Carried 5-3, Pope**

Assistant Mayor Matteau stated she hoped to see Mr. Tyson on the upcoming ballots. The Council thanked each candidate.

City Clerk, Gwen Melcher, Swore Mr. Pope into office.

**AGENDA CHANGES**

None.

**REPORT OF THE SECRETARY**

**A motion was made by Councilor Koloski and seconded by Councilor Limoges to accept the minutes of the February 22, 2023, City Council meeting.**

**Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges - yes**

**Mooshian – yes**

**Pope- abstain**

**Girard - yes**

**Motion carried 8-0, 1 abstained**

**MAYOR’S NOTES**

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Mayor Girard asked for a moment of silence for the passing of retired lieutenant Donald Fontaine Jr. from the Claremont Police Department on February 25<sup>th</sup>.

Leaders of Businesses and Economic Affairs will hold a meeting at CSBCC from 12pm to 1pm tomorrow March 9<sup>th</sup>.

Mayor Girard gave a reminder to all that next Tuesday; the School Board will hold a vote for the budget and members from 8am to 7pm.

### **CITY MANAGER’S REPORT**

City Manager Manale, announced James Chamberlain was appointed as the Acting Fire Chief, effective May 1, 2023. This position will have a six month evaluation period and will be evaluated on budgeting, incident response, traffic light improvement & maintenance, code enforcement, mutual aid, recruitment of call firefighters, and the over-all morale and discipline.

### **APPOINTMENT TO BOARDS AND COMMITTEES**

#### Fisk Free Library Board of Trustees

**A motion was made by Councilor Koloski and seconded by Councilor Mooshian to appoint Dakin Burdick to Seat 4 of the Fisk Free Library Board of Trustees.**

#### **Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian - yes**

**Girard – yes**

**Motion carried 9-0**

#### Conservation Commission

**A motion was made by Councilor Koloski and seconded by Councilor Stone to re-appoint Gary Dickerman to Seat 5 of the Conservation Commission.**

#### **Voice vote:**

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**O’Hearne – yes**  
**Batchelder - yes**  
**Stone - yes**  
**Matteau - yes**  
**Koloski - yes**  
**Limoges – yes**  
**Pope - yes**  
**Mooshian - yes**  
**Girard - yes**  
**Motion carried 9-0**

Planning Board

**A motion was made by Assistant Mayor Matteau and seconded by Councilor Mooshian to re-appoint Bruce Kolenda to Seat 5 of the Planning Board.**

**Voice vote:**  
**O’Hearne – yes**  
**Batchelder - yes**  
**Stone - yes**  
**Matteau - yes**  
**Koloski - yes**  
**Limoges – yes**  
**Pope - yes**  
**Mooshian - yes**  
**Girard - yes**  
**Motion carried 9-0**

**A motion was made by Councilor Limoges and seconded by Councilor Stone to re-appoint David Pacetti to Seat 6 of the Planning Board.**

**Voice vote:**  
**O’Hearne – yes**  
**Batchelder - yes**  
**Stone - yes**  
**Matteau - yes**  
**Koloski - yes**  
**Limoges – yes**  
**Pope - yes**  
**Mooshian - yes**  
**Girard - yes**

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**Motion carried 9-0**

Zoning Board

**A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to re-appoint Todd Russel to Seat 4 of the Zoning Board.**

**Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian - yes**

**Girard - yes**

**Motion carried 9-0**

**A motion was made by Councilor Koloski and seconded by Councilor Stone to re-appoint Michael Lemieux to Seat 5 of the Zoning Board**

**Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian - yes**

**Girard - yes**

**Motion carried 9-0**

**A motion was made by Councilor Limoges and seconded by Councilor Batchelder to re-appoint David Putnam to Seat A-2 of the Zoning Board.**

**Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

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**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian - yes**

**Girard - yes**

**Motion carried 9-0**

**A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to nominate Councilor Batchelder to the Conservation Commission.**

**Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian - yes**

**Girard - yes**

**Motion carried 9-0**

**A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to nominate Councilor Pope to the Historic District Commission.**

**Voice vote:**

**O’Hearne – yes**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian - yes**

**Girard - yes**

**Motion carried 9-0**

**CITIZEN’S FORUM**

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Mayor Girard reminded all speakers that they have five minutes on non-agenda items during Citizens Forum.

Norm Blouin, Ward 1, shared many concerns for the Highway Department, and suggested when the leaders in this town can't meet expectations, they should be fired. Mr. Blouin stated he is tired of paying high money for low performance. Mr. Blouin also shared concern for the grants for demolition, and the consultants for the community center.

Commander Blish, American legion Commander for the last 2 ½ years stated it was his responsibility to make sure the Veterans are recognized and taken care of in this town. Commander Blish noted on March 29<sup>th</sup>, 2023 is the 50-year anniversary of our combat troops being pulled from Vietnam. Commander Blish is holding a celebration luncheon starting at 11:00 a.m. for the Veterans and invited the Council to stop by and give thanks for their service.

## **OLD BUSINESS**

### **Ordinance 606 Employee Classification Plan, Attachment B**

Human Resource Manager, Ms. Lauzon explained to Council the proposed changes for Ordinance 606.

## **CITY OF CLAREMONT - IN THE YEAR TWO THOUSAND AND TWENTY-THREE**

### **ORDINANCE #606**

#### **Amending the City of Claremont's Merit System – Creation of Human Resources Director and Finance/Human Resources Specialist Positions; Amending the Non-Union Employee Classification Plan**

#### **THE CITY OF CLAREMONT ORDAINS:**

Pursuant to Article III, Sections 24, 25 and Article IV, Sections 51 and 52, of the Claremont City Charter; the City's Merit System as well as the Non-Union Employee Classification Plan (Attachment B) are hereby amended and readopted as follows:

#### **Section 1. Creation and Replacement of Position in the City's Human Resources Department**

The City Council hereby establishes, by and through this Ordinance, the position of Human Resources Director which shall be included in the City of Claremont's Merit System and as

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part of the list of positions within the City's Human Resources Department. This new position shall replace and eliminate the existing position of Human Resources Coordinator.

## **Section 2. Compensation of the Human Resources Director**

The rate of compensation to be paid to the Human Resources Director shall be established within the parameters of Grade 12 of the Non-Union Employee Pay Schedule at the annualized pay scales as set forth in Attachment C (on file in the City Manager's Office).

## **Section 3. Creation of Position in the City's Finance Department**

The City Council hereby establishes, by and through this Ordinance, the position of Finance/Human Resources Specialist which shall be included in the City of Claremont's Merit System and as part of the list of positions within the City's Finance Department. This is an entirely new position for the City and will not replace or eliminate any other current position within that Department.

## **Section 4. Compensation of the Finance/Human Resources Specialist**

The rate of compensation to be paid to the Finance/Human Resources Specialist shall be established within the parameters of Grade 7 of the Non-Union Employee Pay Schedule at the annualized pay scales as set forth in Attachment C (on file in the City Manager's Office).

## **Section 5. Non-Union Employee Classification Plan**

The compensation of every non-union employee of the City shall be determined by the classification of the job in which such person is employed and in accordance with Attachments B and C to the City's Merit System (which are on file in the City Manager's Office). Upon adoption of this Ordinance, the new version of the Non-Union Employee Classification Plan (Attachment B), which is an exhibit to this Ordinance, shall be implemented with the proposed changes contained therein and consistent with this legislative act.

## **Section 6. Prior Enactments Superseded**

The Non-Union Employee Classification Plan as adopted by action of the City Council concerning those set forth in Attachment B, prior to adoption of this Ordinance, and all prior amendments thereto, are hereby repealed as they pertain to same.

## **Section 7. Validity**

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If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

### **Section 8. Effective Date**

This Ordinance shall take effect and be enforced immediately upon passage, but shall be retroactive to the first day of the month in which it is passed upon third reading.

**A motion was made by Councilor Mooshian and seconded by Councilor Koloski to pass Ordinance 606 to a third reading on Wednesday March 22, 2023.**

Councilor Mooshian read the explanation of proposed action into record

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Councilor O’Hearne asked why would the City pay thousands of dollars in an increase for the Human Resources position when other positions like in the Highway Department only received a 1.5% increase, and Councilor O’Hearne asked why the Highway Department wasn’t offered a retention bonus like the Police department.

Mr. Manale stated that is part of negotiations, and stated the Council can address this when approached with the budget.

Councilor Koloski noted that everyone that is working for City has different circumstances, and other negotiations have no bearing on this Ordinance change.

Assistant Mayor Matteau shared concern for losing upper tiered employees to surrounding communities.

Councilor O’Hearne stated if lower-level employees are not taken care of and leave, managers won’t have anyone to supervise.

### **Roll call:**

**O’Hearne – no**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

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**Pope - yes**

**Mooshian - yes**

**Girard - yes**

**Motion carried 8-1**

## **NEW BUSINESS**

### Resolution 2023-24 North and Main Street Funding

Director Merrill, explained resolution 2023-24, and noted this has gone through right of way review, railroad review, historic review, preliminary design, now in final design. Director Merrill noted she was uncomfortable signing amendments with a 20% match, if that match isn't secured. This plan is scheduled to go out to bid in August.

### **RESOLUTION 2023-24**

#### **Supplemental Appropriation for Infrastructure Improvements –North & Main**

**BE IT RESOLVED** by the Claremont City Council, after a public hearing duly noticed,

that:

**WHEREAS** the City of Claremont, New Hampshire (the "City") received Federal Highway Improvement Grant funds in 2011 for the reconstruction of the North and Main Street intersection anticipated to cost \$4,810,000 (the "Grant"); and

**WHEREAS** acceptance of this Grant required that the City provide local matching funds in the amount of \$785,000 for the North and Main reconstruction project (the "Project") which was done as part of the 2011 bond as well as \$100,000 appropriated in the 2011 Budget;

**WHEREAS** increased costs required the City to provide additional local matching funds in the amount of \$88,416.75 from Resolution 2021-14; and

**WHEREAS** the length of time and additional costs and project expenditures has caused an increase in project costs;

**NOW THEREFORE BE IT RESOLVED** to raise and appropriate the sum of \$26,584.25 as the City's match for the Project, said sum shall be in addition to the funds already appropriated, spent and/or encumbered previously, with offsetting revenue to come from the Municipal Transportation Capital Reserve Fund (to have no impact on the tax rate); and

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**BE IT FURTHER RESOLVED** to authorize the City Manager or the Treasurer, or their designees, to withdraw said funds from the Municipal Transportation Capital Reserve Fund; and

**BE IT FURTHER RESOLVED** that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2B Vote Required)*

**A motion was made by Councilor Batchelder and seconded by Councilor Koloski to adopt resolution 2023-24.**

Councilor Batchelder read resolution 2023-24 into the record.

Mayor Girard asked if there was a requirement to put the money aside now, Director Richmond clarified we have the funds to go forward.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

**Roll call:**

**O’Hearne – yes**  
**Batchelder - yes**  
**Stone - yes**  
**Matteau - yes**  
**Koloski - yes**  
**Limoges – yes**  
**Pope - yes**  
**Mooshian - yes**  
**Girard - yes**  
**Motion carried 9-0**

**COMMITTEE REPORTS**

Councilor Stone stated the Policy Committee reviewed the mobile food unit policy and will be submitting to council.

Assistant Mayor Matteau noted the Planning Board worked on the CIP.

Councilor Koloski noted Richard Warlich was nominated to the Upper Valley Lake Sunapee Regional Planning Commission, and should be reviewed at Council.

**FUTURE AGENDA ITEMS AND DIRECTIVES**

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Councilor O’Hearne shared concern for the responsibility of lights, Director Richmond stated she sent an email for the procedure and attached links.

Councilor Koloski suggested the Council re-visit the Fire Chief/ Fire Department being responsible for the Airport.

Councilor Stone suggested bringing back the practice of having Council members at negotiations. Councilor Stone also stated the importance of having a Council representative on every board.

**CONSULTATION WITH LEGAL COUNSEL**

None.

**ADJOURNMENT**

**At 7:28 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to adjourn.**

**Voice vote:**

**O’Hearne – opposed**

**Batchelder - yes**

**Stone - yes**

**Matteau - yes**

**Koloski - yes**

**Limoges – yes**

**Pope - yes**

**Mooshian -yes**

**Girard - yes**

**Motion carried 8-1**

Respectfully Submitted,

Julia A. Bizzarro  
Clerk to the Council